

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: July 6, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER ON MICHAEL HAAHR HANSEN’S MOTION TO QUASH DEPOSITION SUBPOENA

This matter came on for consideration of Non-Party Witness Michael Haahr Hansen’s Motion to Quash or, in the Alternative, to Modify Deposition Subpoena filed July 2, 2026; and Complainant Cool Living LLC’s Opposition to Michael Haahr Hansen’s Motion to Quash, or in the Alternative, Modify Deposition Subpoena and Exhibits 1 and 2 filed the same date. For the reasons set forth below, the motion is **GRANTED**, the deposition subpoena issued to Michael Haahr Hansen commanding his appearance on July 7, 2026, is **QUASHED**, and the parties are directed to proceed in accordance with the directions set forth in this order. Accordingly, absent further extension based upon a finding of good cause any deposition of Michael Haahr Hansen shall occur on or before July 13, 2026, pursuant to his voluntary appearance at the location of his choosing in Atlanta, Georgia, Washington, DC, or New York City, before a an officer authorized to administer an oath in accordance with 46 C.F.R. § 502.142 or by remote deposition pursuant or written stipulation of the parties.

I. Background

In the Order Following Status Conference dated June 12, 2026, the discovery deadline in this proceeding was extended to July 13, 2026, for the limited purpose of allowing Respondent to conduct the depositions of two witnesses that had been noticed prior to the then-applicable discovery deadline on June 13, 2026, but not taken due to a discovery dispute between the parties that had been complicated by the motion for withdrawal filed by Complainant’s counsel. (Dkt. 27.)

On June 16, 2026, Complainant Cool Living LLC filed a motion seeking to extend the discovery deadline to depose Michael Haahr Hansen. (Dkt. 28.)

In the Order on Complainant’s Motion for Extension of Discovery Deadline served June 24, 2026, I made the following relevant findings:

- Michael Haahr¹ was first identified as a witness with knowledge in the initial disclosures served January 21, 2026, but that no effort was made to depose him during the discovery period that expired June 13, 2026;
- The principle reason offered for why no deposition was taken during the period from January 21, 2026, when Michael Haahr was identified as a person with knowledge in Respondents' initial disclosures, and May 12 and 13, 2026, when Complainant was advised of counsel's intent to withdraw, a period of more than three months, was the "multi-week process of managing its counsel's withdrawal and seeking substitute counsel impeded Cool Living's ability to move forward with its own deposition strategy;"
- Complainant failed to exercise due diligence in conducting discovery and has not established good cause to extend the deadline in a manner that would impact the remaining schedule;
- Allowing a deposition of Michael Haahr Hansen to be conducted on or before July 13, 2026, would not impact the current schedule, and would not prejudice Respondents;
- Despite Complainant's failure to establish good cause for an extension of discovery, the balance of competing interests tips in favor of allowing Complainant one last opportunity to develop the record fully;
- Because Michael Haahr is a former employee of Respondents and not a current employee, his deposition must be obtained by subpoena or voluntary appearance, and Respondents are not required to produce him pursuant to a notice of deposition as would be the case for a current officer, employee, or managing agent.

(Order, at 4, Dkt. 30.)

The order provided its pertinent part "that the discovery period is extended to July 13, 2026, for the limited purpose of allowing Complainant to depose Michael Haahr in his individual capacity on the condition that Complainant compels his attendance by subpoena or Michael Haahr appears voluntarily within the extended period. (Order, at 5.)

The order did not modify the requirements in the Commission Rules for service of a subpoena or conducting a deposition.

On June 29, 2026, Complainant's counsel requested via email that I execute the attached subpoena directing Michael Haahr Hansen to appear for deposition to be conducted remotely on

¹The order referred to "Michael Haahr" because that was the name used in the motion under consideration but explained that the witness's full name is "Michael Haahr Hansen" and that all references to Michael Haahr in the order include the individual known as Michael Haahr Hansen.

July 7, 2026, and sent courtesy copies of the email to counsel of record and Complainant's representative. The email stated in pertinent part:

Counsel for Cool Living has been in communication with Counsel for Respondents regarding the deposition of Mr. Haahr Hansen in conformity with Your Honor's Order dated June 24, 2026. Counsel for Respondents advised that Mr. Haahr Hansen is no longer employed with Respondents, that they are authorized to represent him and the deposition, but that a third-party subpoena would be necessary to effectuate his deposition.

Counsel for Respondents are considering a date for the deposition before the July 13 deadline, but in the interest of moving the matter forward, we submit this subpoena for July 7, "except as otherwise agreed to by the parties."

Although not expressly stated, I understood the email requesting execution of the subpoena to mean that the parties had agreed to conduct the remote deposition of Michael Haahr Hansen on or before July 13, 2026, that Respondents' counsel would represent Michael Haahr Hansen at deposition, that July 7 was one of the dates under consideration but that a different date may ultimately be agreed to by the parties, but that because the witness was a non-party a subpoena would need to be issued compelling his attendance in accordance with the agreement of the parties. Accordingly, I issued the subpoena on the same date it was received, June 29, 2026,

The motion to quash under consideration makes plain that my understanding of the agreement between the parties regarding the deposition of Michael Haahr Hansen was not correct, and that an order addressing the discovery dispute is required.

II. Argument of the Parties

Respondents argue that the subpoena issued June 29, 2026, commands the attendance of Michael Haahr Hansen at deposition eight days later, or July 7, 2026, which fails to comply with the twenty-day notice requirement in 46 C.F.R. § 502.132(c). Respondents assert that the parties did not stipulate to a shorter notice period than required by the applicable regulation. Respondents argue that the subpoena provides for a remote deposition that was not stipulated by the parties or ordered by this tribunal, and fails to identify a "place of compliance, officer, or oath procedure." Respondents argue that the subpoena itself does not authorize a remote deposition or eliminate the requirements for service of a valid subpoena. Respondents argue that the subpoena is deficient because it does not provide for deposition before an officer authorized to administer an oath in accordance with 46 C.F.R. § 502.142. Respondents argue that the eight-day notice provided in the subpoena is unreasonable and unduly burdens a non-party. Accordingly, Respondents request that the subpoena be quashed, or, in the alternative, that any deposition ordered be conducted in person at a particular location in Atlanta, Georgia. (Motion at 2-6.)

Complainant argues in the opposition that the June 24, 2026, Order on Complainant's Motion for Extension of Discovery Deadline constitutes an exception to the twenty-day service requirement because the short notice was "otherwise ordered by the presiding officer" in accordance with 46 C.F.R. § 502.132(c). Complainant argues that the notice provided is

reasonable under the circumstances of the limited discovery period and ongoing discussions between the parties. Complainant argues that the subpoena is not unduly burdensome. Complainant argues that consideration should be given to the fact that Michael Haahr Hansen is not a peripheral former employee, but rather a former director and board member of the named Respondent ALPI U.S.A. who personally verified Respondents' answer. Complainant notes that discovery schedule was extended to permit the remote depositions of two of its current officers. Complainant objects to Respondents' demand that any deposition ordered be taken in Atlanta given that the witness was served in New York City where he resides. Complainant requests that if remote deposition is not ordered that the subpoena be modified to provide for the deposition to be conducted in New York City where the witness resides or in Washington, D.C. where the Federal Maritime Commission is located. (Opposition, at 3-8.)

III. Relevant Law

A. Non-Party Witness Testimony

Generally, a party is not under a legal obligation to produce a non-party as a witness at a deposition, unless the party has some control over the non-party, such as where the non-party is an employee or an expert witness, or where the party is exerting some sort of influence over the witness as to appearing. Accordingly, a party is not under any legal obligation to compel a non-party former employee to appear for deposition. *Redick v. Lowes Home Centers, LLC*, Case No 1:21-cv-00358-SAB, 2022 WL 2133799, at *5-6 (E.D. CA 2022).

Thus, while a party may be compelled by notice to produce itself and its current officers, directors, and managing agents, the attendance of a non-party witness may be compelled only by subpoena issued pursuant to 46 C.F.R. § 502.131.

B. Subpoenas

46 C.F.R. § 502.132(c) provides:

If served in connection with the taking of a deposition pursuant to § 502.143 unless otherwise agreed to by all parties or otherwise ordered by the presiding officer, the party who has requested the subpoena shall arrange that it be served at least twenty (20) days prior to the date specified in the subpoena for compliance therewith, the person to whom the subpoena is directed may move to quash or modify the subpoena within ten (10) days after service of the subpoena, and a reply to such motion shall be served within seven (7) days thereafter. [Rule 132.]

C. Depositions

46 C.F.R. § 502.143(b)(4) governs remote depositions. It provides that “[t]he parties may stipulate, or the presiding officer may on motion order, that a deposition be taken by telephone or other remote means.”

46 C.F.R. § 502.143(b)(5)(i) governs an officer's duties before the deposition. It provides in pertinent part that “[u]nless the parties stipulate a deposition must be conducted before an officer appointed or designated under § 502.142.

46 C.F.R. § 502.142(a)(1) governs persons before whom depositions may be taken. It provides that a deposition must be taken before:

- (i) An officer authorized to administer oaths either by federal law or by the law in the place of examination; or
- (ii) A person appointed by the Commission or the presiding officer to administer oaths and take testimony.

IV. Discussion

The June 24, 2026, Order on Complainant's Motion for Extension of Discovery Deadline provided "that the discovery period is extended to July 13, 2026, for the limited purpose of allowing Complainant to depose Michael Haahr in his individual capacity on the condition that Complainant compels his attendance by subpoena or Michael Haahr appears voluntarily within the extended period." (Order, at 5.)

Nothing in the order can reasonably be construed to have waived or modified the regulatory requirements in the Commission Rules for serving a subpoena or conducting a deposition. Moreover, I find that the order did not do so.

Accordingly, Complainant was required pursuant to the order to do one of the following: timely serve a subpoena upon Michael Haahr Hansen satisfying the requirements of 46 C.F.R. §§ 502.132(c), 502.143(b)(4), 502.143(b)(5)(i), and 502.142(a)(1); or obtain an agreement for the witness to appear voluntarily despite not satisfying these requirements.

Complainant did not effectuate either of the two available options. The subpoena served with less than the twenty-day notice required by 46 C.F.R. § 502.132(c) is invalid. Michael Haahr Hansen did not waive the twenty-day notice requirement and no order was entered waiving it.

While the July 13 discovery deadline did not allow for sufficient time to provide twenty-day notice absent entry of an order modifying that requirement, it was incumbent on Complainant to seek a modification of the requirement by motion or stipulation of the parties if voluntary appearance could not be secured. Complainant failed to do so, but rather chose to serve a subpoena that was invalid on its face absent an agreement to waive any technical deficiency.

Michael Haahr Hansen cannot be compelled to appear absent service of a valid subpoena or voluntary appearance because he is a former employee and no motion was filed seeking modification of the twenty-day notice requirement based on the significant role he played when employed by Respondents. For this reason, I find the argument that his significant role should be considered to have been waived for purposes of this order.

Complainant's suggestion that Michael Haahr Hansen should be compelled to appear remotely for deposition because the remote depositions of Complainant's two witnesses was ordered in the June 24 order is inapposite because they are current officers that Complainant could be compelled to produce in person for deposition. When faced with the decision at the

status conference conducted July 12, 2026, as to whether to agree to a remote deposition of these witnesses or to produce them in-person for deposition, Complainant elected to stipulate to a remote deposition and later did so in writing. No such similar circumstances exist here where the deposition of a former employee is sought.

The record also demonstrates that Complainant failed to provide for Michael Haahr Hansen's deposition to be conducted before an appropriate officer appointed or designated in accordance with 46 C.F.R. § 502.142, and did not obtain a stipulation to waive this requirement.

For the foregoing reasons, I find that the subpoena served upon Michael Haahr Hansen did not comply with the applicable Commission Rules and is properly quashed on this basis.

At the same time, it appears that Michael Haahr Hansen is willing to appear in person for deposition at an agreeable date within the current deadline on the condition that it be conducted at the offices of Miller & Martin PLLC, 1180 W. Peachtree Street NW, Suite 2100, Atlanta, Georgia 30309.

Given that the witness is a former employee that Respondents are not legally required to produce for deposition, I find that it is reasonable to honor his request for an in-person deposition in Atlanta despite that he was served with a subpoena in New York City where he resides. There are a myriad of reasons why that location may be necessary to accommodate his needs on a particular date, including but not limited to current business demands, planned personal or business travel, or availability of legal counsel.

Thus, if the witness remains amenable to voluntary appearance in person in Atlanta, his request for the deposition to be conducted at that location will be honored.

Given that the current discovery deadline expires on July 13, 2026, and the fact that it may no longer be practicable to conduct the witness's deposition within that time frame, the parties may file a motion for an extension of the current scheduling deadlines based on the need for additional time due to the ongoing discovery dispute.

This order is without prejudice to the parties reaching an agreement to conduct the deposition by remote means if they are willing to do so.

V. Order

For the foregoing reasons, it is

ORDERED that Non-Party Witness Michael Haahr Hansen's Motion to Quash or, in the Alternative, to Modify Deposition Subpoena is **GRANTED** subject to the conditions set forth in this order, it further

ORDERED that the deposition of Michael Haahr Hansen scheduled for July 7, 2026, is **QUASHED**, it is further

ORDERED absent further extension based upon a finding of good cause any deposition of Michael Haahr Hansen shall occur on or before July 13, 2026, pursuant to his voluntary appearance at the location of his choosing in Atlanta Georgia, Washington, DC, or New York

City, before an officer authorized to administer an oath in accordance with 46 C.F.R. § 502.142 or by remote deposition pursuant or written stipulation of the parties, it is further

ORDERED that the deposition shall be held at the offices of Miller & Martin PLLC, 1180 W. Peachtree Street NW, Suite 2100, Atlanta, Georgia 30309 if Michael Haahr Hansen agrees to voluntarily appear for deposition within the current discovery deadline and that is his preferred location, it is further

ORDERED that the parties may file a motion for an extension of the current scheduling deadlines if there is good cause to do so, it is further

ORDERED that this order is without prejudice to the parties reaching an agreement to conduct the deposition by remote means if they are willing to do so.

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY -S
Date: 2026.07.06 10:49:55 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge